Elwood UFSD Policy 8636, Artificial Intelligence: Data and Student Privacy Passages

Excerpted verbatim from *Policy 8636, Artificial Intelligence (Elwood Union Free School District, New York; adopted November 13, 2025)*. Page numbers refer to the PDF pages of the source file. Ellipses (…) mark omitted text.

Guidelines: Education Law 2-d Compliance

Source: page 2

Any use of GenAI in schools, on school networks/computers, or for school purposes must be compliant with Education Law 2-d and its regulations, particularly whenever student and staff Personally Identifiable Information is disclosed, including third-party agreements where applicable. Staff must consult with the district's Data Protection Officer to determine compliance with Education Law 2-d. Staff must also be mindful that some GenAI tools are free and others are not, that some GenAI tools are not permitted to be used by those under certain ages, or require parent permission, and that some students and/or parents may not wish to use GenAI tools or input their work into them.

Requirements

Source: page 2

Because any information used as input in a GenAI may be used by that system and potentially made available to other users of the system, district users must not input any sensitive, copyrighted, proprietary, or confidential district information, consistent with applicable state and federal laws and district policies, including but not limited to the following:

- **Student information:** anything that would be protected by FERPA (see policy 5500) or Education Law 2-d (see policy 8635).
- **Staff information:** anything that would be protected by Education Law 2-d or Labor Law 203-d (see policy 8635), or other confidential personnel information.
- **School district information:** anything that would be withheld from a Freedom of Information Law (FOIL) request (see policy 1120), or private information under State Technology Law §208 which would require notification in the event of a breach.

Additionally, users of GenAI must exercise caution before inputting any work created by district students or employees.

Cross-References and Legal References (excerpt)

Source: page 3

5500, Student Records

8630, Computer Resources and Data Management

8635, Information and Data Privacy, Security, Breach and Notification

Ref: Family Educational Rights and Privacy Act, as amended, 20 USC 1232g; 34 CFR Part 99 … Education Law §2-d Labor Law §203-d State Technology Law §208 8 NYCRR Part 121